



RE Amendment Request – Automatically Unfair Constructive Dismissal: CCMA CASE NO.: WEC123564-25 - [Wilbur Matthee] vs [Xolile Vincent Manyati]

2 messages

Wilbur William Matthee <wilburmat@gmail.com> Wed, 17 Dec 2025 at 09:38
To: Francis Catovic <francisc@ccma.org.za>, taniaf@ccma.org.za, CMS@CCMA.org.za <CMS@ccma.org.za>
Bcc: Sr Wilbur William Matthee <wilburmat@gmail.com>

Dear CCMA,

Please amend my case (Ref: WEC133564-25) from “Unfair Labour Practice” to “Automatically Unfair Constructive Dismissal”.

My resignation was not voluntary but the result of continuous discrimination, victimisation, failure to accommodate my disability, and procedural unfairness.

The employer’s conduct made continued employment intolerable, and the dismissal is automatically unfair in terms of Section 187 of the LRA.

Kind regards,Wilbur William Matthee

 **Gmail - FORMAL NOTICE OF RESIGNATION DUE TO AUTOMATICALLY UNFAIR CONSTRUCTIVE DISMISSAL(1).PDF**
141 KB

<postmaster@ccma.org.za> Wed, 17 Dec 2025 at 09:40
To: wilburmat@gmail.com

Delivery has failed to these recipients or groups:

CMS@CCMA.org.za (cms@ccma.org.za)

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cms@ccma.org.za

Remote server returned '554 5.2.2 mailbox full; STOREDRV.Deliver.Exception:QuotaExceededException. MapiExceptionMessagePerFolderCountQuotaExceeded; Failed to process message due to a permanent exception with message [BeginDiagnosticData]Cannot complete delivery-time processing. ..., 1.33010:0E000000, 2.54258:00000000, 1.33010:0E000000, 2.54258:00000000, 1.55954:9E000000, 0.40818:00000000, 0.64754:0C000000, 1.33010:9E000000, 2.54258:E4040000, 1.33010:9E000000, 2.54258:E4040000, 255.79500:00000000, 0.100684:00000000, 255.66700:00000000, 5.95292:67000000446F526F70730061, 8.111356:9552F9FE86593ECC1F1F572B2F8F6B